

 Internal Case Management System Worksheet - Case Closing					Top Allegation OFFICIAL STATEMENT - MISLEADING STATEMENT - PG		Group G54-GROUP 54 - FORCE Date of This Report 11/07/2018	
Date Reported 05/30/2017	Date Assigned 05/30/2017	IAB Log No. 2017-20366	Case No. (G54) C-2017-283	Folder Type CORRUPTION	Preliminary Case Type MISCONDUCT	Follow-Up No.	Worksheet Tracking No. 3314986	

Topic/Subject (Case Closing) CASE CLOSING (PARTIALLY SUBSTANTIATED)	Activity Date 11/07/2018	Activity Time 07:40
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Referred to Group -	Conferred With	Next Review Date
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Closing Statement

Case #
C-2017-0283

Log #
2017-20366
2018-24159
2018-24161
2018-38836
2018-38928

Subject Officers:
 Police Officer, David Arroyo, Tax # 903366, Queens Court Section (Formerly assigned to 79th Precinct)
 Date of Appointment: 08/30/1993
 Probation (at time of incident): No
 Current Duty Status: Modified on 10/04/2018 pursuant to this investigation.

Police Officer, Alexandro Berrios, Tax # 929719, 79th Precinct
 Date Of Appointment: 07/01/02
 Probation (at time of incident): No
 Current Duty Status: Full Duty/Active

Police Officer, Jason Frederick, Tax # 930183, 79th Precinct
 Date Of Appointment: 07/01/02
 Probation (at time of incident): No
 Current Duty Status: Full Duty/Active

Police Officer, Sandra Melendez, Tax # 939801, 79th Precinct
 Date Of Appointment: 01/09/06
 Probation (at time of incident): No
 Current Duty Status: Full Duty/Active

Date Case Received:
June 2, 2017

Date of Occurrence:
May 13, 2017

Administrative Statute of Limitations Expires:
November 13, 2018

Classification:
C-2

Investigator:
Lieutenant Steven Alfano, Tax # 921911

Team Leader:
Deputy Inspector Michael Parente, tax # 905618

Overall Case Disposition:

Partially Substantiated

Details:

Log# 2017-20366

On Tuesday May 30, 2017 at 1640 hours Lt. Singh Tax# 929179 called the Command Center and stated that PO [REDACTED] called over the phone to tell him she believes she is being retaliated against by several Officers. PO [REDACTED] was a witness brought in for questioning by Group 54, approximately a year ago in a case which involved her old partner PO Sandra Melendez, Tax#9 39801 who was the subject and didn't get called in until recently. It was mentioned that PO [REDACTED] and her current partner PO [REDACTED] are going to request a tour change because they don't feel safe working midnights. When they respond to jobs, no one is backing them up when expected. On 5/13/17 PO [REDACTED] was at the Hospital with an Aided who was admitted and as she exited, she observed PO Alexandro Berrios, Tax# 929719 and PO Frederick Tax# 930183 in a car and felt that they gave her a threatening look and drove off. At the end of that tour in the precinct parking lot, PO Berrios, PO Frederick and the PBA delegate PO David Arroyo, Tax# 903366 engaged PO Stone. She stated PO Frederick said, "nobody likes you, why don't you get off the tour." Followed by PO Arroyo saying, "The PBA lawyer said you gave your partner up, you're a snitch. She (PO Melendez) is going to lose her job or days because you snitched." Lt. Singh reported that a year and a half ago PO Arroyo also made a statement about PO [REDACTED] and her partner writing too many summonses and that they need to get on board with the rest of the platoon and write two (2).

Log# 2018-21459

On June 21, 2018, the Commanding Officer of Group 54 D.I. Michael Parente preferred Charges and Specifications against PO Alexandro Berrios Tax # 929719 for two (2) Specs as follows:

1.Said Police Officer Alexandro Berrios while assigned to the 79 Pct and on duty. on or about May 13, 2017 engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that said Police Officer travelled outside of his assigned sector and command without permission or authority.

P.G. 203-10, PAGE 1, PARA 5 PUBLIC CONTACT- PROHIBITED CONDUCT

2. Said Police Officer Alexandro Berrios while assigned to the 79 Pct and on duty. on or about May 13, 2017 engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that said Police Officer failed to immediately respond and render police services to a job properly assigned to him.

P.G. 203-10, PAGE 1, PARA 5 PUBLIC CONTACT- PROHIBITED CONDUCT

P.G. 202-21, PAGE 1, PARA 8 POLICE OFFICER

Log# 2018-24161

On June 21, 2018, the Commanding Officer of Group 54 D.I. Michael Parente preferred Charges and Specifications against PO Jason Frederick Tax # 930183 for two (2) Specs as follows:

1.Said Police Officer Jason Frederick while assigned to the 79 Pct and on duty. on or about May 13, 2017 engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that said Police Officer travelled outside of his assigned sector and command without permission or authority.

P.G. 203-10, PAGE 1, PARA 5 PUBLIC CONTACT- PROHIBITED CONDUCT

2. Said Police Officer Jason Frederick while assigned to the 79 Pct and on duty. on or about May 13, 2017 engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department in that said Police Officer failed to immediately respond and render police services to a job properly assigned to him.

P.G. 203-10, Page 1, Para. 5 Public Contact ☐ Prohibited Conduct

P.G. 202-21, Page 1, Para. 8 Police Officer

Log # 2018-38836

On October 4, 2018, the Commanding Officer of Group 54 D.I. Michael Parente preferred Charges and Specifications against PO David Arroyo Tax # 903366 for three (3) Specs as follows:

1 Said Police officer David Arroyo, while assigned to the 79th precinct and on-duty, on or about and between March 19, 2018 and April 11, 2018 engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to Wit: Said Police Officer, during his two official Department interviews, wrongfully made inaccurate or misleading statements as to conversations he had with PO. [REDACTED] and PO [REDACTED].

P.G. 203-10, Page 1, Para. 5 Public Contact ☐ Prohibited Conduct

2 Said Police officer David Arroyo, while assigned to the 79th precinct and on-duty, on or about and between December 30, 2015 and May 13, 2017, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to Wit: Said Police Officer attempted to influence performance activity on the 1st platoon by telling members to be on the "☐ Same Plane☐ and ☐ Same number☐ regarding summons activity.

P.G. 203-10, Page 1, Para. 5 Public Contact ☐ Prohibited Conduct

3 Said Police officer David Arroyo, while assigned to the 79th precinct and on-duty, on or about May 13, 2017, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: Said Police Officer called Police Officer Stone a "rat" as a direct result of perceived statements made by Police Officer Stone in a prior P.G. 206-13 hearing and perceived statements made by Police Officer [REDACTED] to supervisors regarding Police Officer [REDACTED] attempts to influence summons performance activity.

P.G. 203-10, Page 1, Para. 5 Public Contact ☐ Prohibited Conduct

Log# 2018-39828

On October 4, 2018 PO David Arroyo Tax #903366 79 Precinct was placed on Modified assignment for the good order and

efficiency of the Department, under the authority of Deputy Chief Alan Cooper.

C16-0065 is the original case involving PO Melendez and PO [REDACTED] that led to this retaliation case. The investigation into C16-0065 disclosed that on January 2, 2015, [REDACTED] was arrested on a charge of [REDACTED]. Subsequent to [REDACTED]'s arrest, he was brought to the 79th Precinct for processing. The Command Log entry regarding [REDACTED]'s physical condition upon entrance to the 79th Precinct indicates □ Apparently Normal. □ On January 3, 2015 at approximately 0300 hours, [REDACTED] was brought to the emergency room of Woodhull Medical Center for a psychiatric evaluation by EMS and escorted by PO Melendez and her partner, PO [REDACTED]. [REDACTED] alleged that while at the hospital he was punched in the face by a police officer, causing a broken jaw. Two (2) nurses that were working on the day of the incident stated that they saw PO Melendez punch [REDACTED] approximately 5 (five) times while he was rear-cuffed lying on a Hospital gurney. [REDACTED] was in fact diagnosed with a fractured jaw after he was discharged to Central Booking then returned back to the Hospital before arraignment. PO Melendez was treated for a sprained right index finger after the alleged incident. It is noted that PO Melendez is right-handed. PO Melendez was treated by Dr. [REDACTED] and diagnosed with a sprained right index finger. On November 29, 2015 Nurse [REDACTED] was interviewed, she observed PO Melendez punch [REDACTED] in the face with both hands approximately 5-6 times while handcuffed. Nurse [REDACTED] stated that the officer that punched [REDACTED] was □ PO Melendez □ (she saw her nameplate). On April 3, 2016, Nurse [REDACTED] stated that [REDACTED] was handcuffed behind his back while she witnessed Melendez punch [REDACTED] in the face with both hands more than 5 (five) times. [REDACTED] stated that the officer that was treated for a hand injury was the officer that struck [REDACTED]. [REDACTED] stated that PO Melendez stated, □ "Get something for this fuck's mouth", □ referring to the prisoner she was safeguarding at the time. In addition, PO Melendez called the two (2) Nurses at Woodhull Hospital □ bitches. □ [REDACTED] was taken to the hospital by EMS. One (1) of the EMTs involved has since left the country and has not been interviewed. A second EMT Mr. [REDACTED] has been interviewed and did not witness [REDACTED]'s allegation. EMT Ms. [REDACTED] (transporting in Bus) stated that [REDACTED] was taken to the hospital solely for psychiatric evaluation and had no visible injuries prior to his arrival at the hospital. On December 12, 2015 Police Officer [REDACTED] was interviewed under the provisions of PG 206-13. PO [REDACTED] stated that she did not witness PO Melendez strike [REDACTED]. PO [REDACTED] stated that she observed PO Melendez injure her finger while trying to handcuff [REDACTED] as [REDACTED] kicked, screamed, and spit at the officers. Although this incident occurred on January 3, 2015, the Internal Affairs Bureau was not made aware of it until August 10, 2015, when ADA Grace Brainard notified Group 54 that she had learned of the allegation through [REDACTED]'s attorney. Since that time, the case has remained under review by Brooklyn DA's Office and a Prosecutorial wall was created to Conduct a PG 206-13 Hearing with PO Melendez. Charges and Specifications were preferred against PO Melendez for violating (3) three Counts of PG Procedure 203-10, □ Public Contact □ Prohibited Conduct General Regulations.

PO Sandra Melendez, Tax # 939801

1. FADO - Unnecessary Force, The investigation disclosed that PO Melendez did utilize unnecessary force when she intentionally caused physical injury to [REDACTED]. The allegation of FADO Unnecessary Force will be closed out as Substantiated. Specification #1.
2. Charges & Specifications, I&I
3. FADO Offensive Language - Other Offensive Language. PO Melendez did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department when PO Melendez was discourteous to a person known to the Department when she stated, "Get something for this fuck's mouth" referring to the prisoner she was safeguarding at the time. The allegations of FADO Discourtesy will be closed out as Substantiated. Specification #2.
4. FADO Discourtesy - Word. PO Melendez did wrongfully engage in conduct prejudicial to the good order, efficiency and discipline of the Department when PO Melendez was discourteous to a person known to the Department when she was discourteous calling Nurses employed at Woodhull Hospital "bitches". Specification #3.
5. FADO - Unnecessary Force, Substantiated

PO [REDACTED]

1. FADO - Unnecessary Force, Unfounded

Identification and Interview of the Complainant:

The complainant PO [REDACTED] was interviewed by investigators on May, 31, 2017.

PO [REDACTED] stated on Thursday, May 25, 2017, she wanted to speak with Lt. Singh however, did not give him any details regarding what the topic was. PO [REDACTED] stated on May 30, 2017 at approximately 1500 hours, she was able to confer with Lt. Singh and requested a tour change because she does not feel safe on the Midnight tour and Officers do not "back her up" on jobs. PO [REDACTED] stated that she didn't have her activity log with her at this time to discuss specifics of the log (she was at the Range), however this situation has been going on for years. PO [REDACTED] indicated that her steady sector is Adam.

PO [REDACTED] stated that on May 13, 2017 at approximately 0300 hours, PO [REDACTED] and her partner, PO [REDACTED] responded to a "severed limb" job at [REDACTED]. PO [REDACTED] stated that she marked the job 90X. PO [REDACTED] stated that another job came over the air related to her previous 90X job and she had to go to KCH. PO [REDACTED] stated that as they were in route to KCH, another job came over in their sector (10-22) and Central was attempting to give the Job to sSector C who was PO Alexandro Berrios, Tax # 929719 and PO Jason Fredrick, Tax # 930183. Sector C immediately put themselves out on a directed patrol, not to have the 10-22 assigned to them. PO [REDACTED] stated that Central assigned the job to Sector C after completion of their directed. PO [REDACTED] stated that there was an exchange of words between Central, 79C and her partner PO [REDACTED]. PO [REDACTED] stated that 79C was ultimately assigned the job. PO [REDACTED] stated that 79C (instead of driving to the job), went to KCH and looked in the RMP PO [REDACTED] and PO [REDACTED] were sitting in and left the area.

PO [REDACTED] stated that she called Sgt. Andrew Chance, Tax # 928054 and asked if anyone sent 79C over to the hospital and Sgt.

Chance replied, "No". PO [REDACTED] stated that as she went back to the precinct at the end of tour, PO Berrios, PO Fredricks and union delegate PO David Arroyo, Tax # 903366 were present between the two (2) glass doors that exit the rear of the stationhouse. PO [REDACTED] stated that when they were passing, the Officers said, "How long does it take to do a 61?". PO [REDACTED] stated, "You talking to me?" and a verbal altercation between all five (5) Officers transpired. PO [REDACTED] stated that there was not a Supervisor present when this occurred at approximately 0730 hours. PO [REDACTED] stated that Officers continued by saying, "No one likes you, get off the tour" and PO [REDACTED] said, "Fuck you" and looked at PO [REDACTED] and said, "Fuck them" and walked away. When the altercation was over, PO [REDACTED] was completing an Aided on a computer and requested PO Arroyo over to her location. PO [REDACTED] stated that she explained to PO Arroyo that she would have went to the job but she was dealing with a "severed limb" job that was important. PO [REDACTED] stated that she wanted to know why she is being called a "snitch". PO Arroyo stated, "Because Sandy (PO Melendez, Tax # 939801) said the PBA lawyer said that you are a snitch. PO [REDACTED] stated that PO Arroyo then indicated, "You gave your partner up". PO [REDACTED] stated that his conversation was approximately at 0750 hours. PO [REDACTED] stated that she just left the conversation and PO Arroyo walked away.

PO [REDACTED] stated that heard she and PO Melendez were not partners anymore because they grew apart and then partnered up with PO Riley. PO [REDACTED] stated that they both like to write sum mons and make arrests. PO [REDACTED] stated that they were on patrol one day (cannot remember date/time) approximately a year ago. PO Arroyo stated to PO [REDACTED] "We only write two summons a month on the midnights, be on the same page as the midnights". PO [REDACTED] stated that no one has made any threats off duty or threatened bodily harm to PO [REDACTED]

The complainant PO [REDACTED] was interviewed by investigators on May 30, 2017.

PO [REDACTED] stated that when she arrived on the midnights in 2015, PO David Arroyo, Tax # 903366 stated to her, "Just to be on board with the midnights, we write 2 summons a month". PO [REDACTED] stated that she was in the rear of the precinct at the time of the conversation, in an RMP. PO [REDACTED] stated that two summons is not "going to work for her".

PO [REDACTED] stated that when she turns her summons at the end of night, unidentified Officers make fun of her for turning in too many summons. PO [REDACTED] stated that PO Alexandro Berrios, Tax # 929719 was on the TS when this was said (not specifically PO Berrios making the comment) and she does not recall any additional MOS in the area. PO [REDACTED] stated that there was a unidentified Supervisor around but may not have heard what was said. PO [REDACTED] stated that she recalled PO Oscar Palomino, tax # 942321 stating, "You come to the midnights with a day tour mentality" (meaning summons and collars).

PO [REDACTED] stated that Sgt. Nicko Singkuan, Tax # 942552 over heard and stated, "Don't let them intimidate you, keep on doing what you are doing". PO [REDACTED] stated that this conversation took place inside the precinct on several occasions. PO [REDACTED] stated that the platoon commander, Lt. Erik Lubrano, Tax # 924008 was also informed regarding the summons issue and stated, "Try to ignore them and keep doing what you are doing."

PO [REDACTED] stated that when she has 34's or EDP job's, she is never backed by additional sectors. PO [REDACTED] stated that the SOL Lieutenant backed her up in once when she had an arrest. PO [REDACTED] stated that the SOL had to raise the Patrol Sgt to come to the job to verify the arrest. PO [REDACTED] stated that she didn't have her activity log at the time of the interview to refer to. PO [REDACTED] also stated she had to restrain an EDP by themselves (her and PO [REDACTED]) and only Sgt. Andrew Chance, Tax # 928054 came at the time to assist them.

PO [REDACTED] stated that 10-22 came over the air when she was with PO [REDACTED] at the KCH. PO [REDACTED] stated that central was trying to give the 10-22 to 79A and they immediately put themselves over on a directed. PO [REDACTED] stated that in Sector C was PO Berrios and PO Frederick who then passed by PO [REDACTED] and PO [REDACTED] in their RMP as they were outside the hospital completing a 61. PO [REDACTED] stated that she called Patrol Sgt. Chance and asked him if he sent anyone to the hospital, he said "no". PO [REDACTED] stated that this was on May 13, 2017. PO [REDACTED] stated that when they arrived to the precinct at the end of tour, PO Frederick, PO Berrios and PO Arroyo were waiting in between the glass doors. PO [REDACTED] stated that a verbal altercation occurred where one of the Officers stated that she is a "snitch" because she called Sgt. Chance. One of the Officers stated, "You are all snitches, Why would you go to the Sgt and ask about us going to the hospital?" Suddenly PO [REDACTED] stated, "Just leave it alone" and they walked away. There were no Supervisors present in the immediate area. PO [REDACTED] stated that Det Smalls from the 2nd platoon overheard the conversation, walked over and said, "What is going on". PO [REDACTED] stated that she then saw Det. Smalls the next day and asked what was all the yelling about. PO [REDACTED] stated that PO Arroyo continually states that they talk to bosses and they are snitches. PO [REDACTED] said, "You are a delegate, why are you taking sides". PO Riley stated that this conversation occurred in the muster room. PO [REDACTED] stated that PO [REDACTED] asked why are they calling her a snitch and PO Arroyo stated "The IAB lawyer stated that PO [REDACTED] threw her under the bus".

Identification and Interview of Witnesses:

All witnesses are MOS and noted in the case. PG 206-13 hearings were conducted.

1. Lt. Sunil Singh Tax # 929179 - Reporter of the incident and witness.
2. Det Anthony Ward Tax # 926281 - Worked on the same platoon.
3. PO Nicola Whittick Tax # 957285 - Worked on the same platoon
4. PO Hermon Kirton Tax # 901780 - Worked on the same platoon.
5. Sgt Andrew Chance Tax # 928805 - Patrol Supervisor.
6. PO Jeanmarc Denis Tax # 917525 - Worked on the same platoon.
7. PO Douglas Graham Tax # 925381 - Worked on the same platoon.
8. PO Larry Malcolm Tax # 953039 - Worked on the same platoon.
9. Lt Eric Lubrano Tax # 924088 - Platoon Commander.
10. Sgt Nicko Singkuan Tax # 942552 - Worked on the same platoon.

Canvass:
N/A

Identification of subject officers:

The subject officers PO Jason Frederick, PO Alexandro Berrios and PO David Arroyo work on the same tour as the complainant's PO [REDACTED] and PO [REDACTED] who identified the subject officers by name.

Review of Department Records:

>Summons Activity of Squad A2 & A3

A review of summons activity indicated that PO [REDACTED] and PO [REDACTED] did write more summonses on average than a majority of MOS on the Platoon.

>AVL depicted that RMP # [REDACTED] containing PO Berrios and PO Fredricks did travel to Kings County Hospital in their assigned RMP. They did travel outside their assigned sector, precinct and Borough.

Computer and Related Background Checks:

*****PEPR*****

PO David Arroyo
Tax # 903366
Shield #05684
Cmd: Queens Court Section (Formally 79th Pct) Appt. Date: 08/30/1993
Not Sick/Not Chronic
Modified on 10/04/18 as a result of this case.
Arrest History: 276, Felonies: 116, Violations: 13, Misdemeanors 147
NoMonitoring Records

ICMS:

05/30/2017,C-2017-0283, MOS/MOS Altercation (This Case)
5 other cases none similar.

CPI:

01/13/2015,C14-0031,Missing Property-Premise, Unsubstantiated
05/29/2014,Chronic Sick-A, CSL 4X since 06/14/13
01/22/2011,Chronic Sick-A, CSL 4X since 02/14/10
07/19/2010,Chronic Sick-A, CSL 4X since 08/29/09
05/17/2010,Chronic Sick-A, CSL4X since 08/26/09
08/10/2008,Chronic Sick-A, CSL 4X since 09/23/07
08/09/2008,Chronic Sick-A, CSL 4X since 09/23/07
07/02/2006,M06-1326,Dispute Off-Duty (not dom) Unsubstantiated
07/19/2005,M05-1243,Missing Property Person, Exonerated
02/26/1997,Chronic Sick-A,CSL 4X since 02/22/96-02/08/1997
06/09/1995,Charges and Specs, Failed to Safeguard His Service Gun,(5)Five Days
10/19/1994, Firearms Discharge, Accidental Discharge, Receive additional Firearms Instructions

IAPRO

6 other cases none similar.

CCRB

6 cases none similar.

*****PEPR *****

PO Jason Frederick
Tax # 930183
Shield # 20498
Cmd: 79 Precinct
Appt. date: 07/01/02
Not sick/Not chronic
Arrest History: 119, Felonies 50, Violations 8, Misdemeanors 61
No monitoring records

ICMS

05/30/17, C17-0283, MOS/MOS Retaliation - This Case
6 other cases none similar.

CPI

05/26/16, M15-2620, Prisoner Incident Injured in NYPD Custody, Unsubstantiated
08/13/13, M13-2333, Court non-appearance, Substantiated

IAPRO

11 other cases none similar.

CCRB

4 cases none similar.

*****PEPR *****

PO Alexandro Berrios

Tax # 929179

Shield # 29758

Cmd: 079 Pct.

Appt Date: 07/01/20102

Not Sick/Not Chronic

Arrest History: 229, Felonies 76, Violations 21, Misdemeanors 132.

No Monitoring records

ICMS

05/30/17, C17-0283, MOS/MOS Incident (This Case)

5 other cases none similar.

CPI

10/15/16, Chronic Sick B, 40 days since 09/24/15

04/22/16, Chronic Sick A, 4 times since 09/24/15

06/17/13, Civil Suit, Nature is Police Action

09/04/12, Missing property Prisoner, Unsubstantiated

12/02/09, Charges and Specs, Fail t o Safeguard prisoner's property

IAPRO

12 other cases none similar.

CCRB

3 cases none similar.

*****PEPR *****

PO Sandra Melendez

Tax # 939801

Shield # 2247

Cmd: 079 Pct.

Appt Date: 01/09/2006

Not Sick/Not Chronic

Arrest History: 105, Felonies 25, Violations 21, Misdemeanors 59.

No Monitoring records

ICIS

No prior disclose confidential information allegations.

13 Logs none similar.

CPI

06/15/2016, Charges and Specs, PO Melendez did strike Prisoner in the face while handcuffed

01/03/2015, C16-0065, FADO Force - Physical Force, Partial ly Substantiated

10/21/2014, Civil Suit, nature is Police Action

06/15/2013, M13-1792, DRV Other, Fail to Notify IAB, Unsubstantiated

08/02/2011, Dept. Auto Accident, At Fault

03/03/2011, C11-0242, Missing Property Prisoner, Unsubstantiated

03/08/2010, CivilS uit, nature is Police Action

10/30/2006, C06-0880, Missing Property Prisoner, Unsubstantiated

08/06/2006, M06-1738, DRV Other - Fail to Notify prior Domestic Incident, Sub/OMN

05/29/2004, M02-0062, Misuse of Time, Unfounded

02/22/2002, C02-0 189, Gambling, Unsubstantiated

CCRB

5 cases none similar.

IAPRO

3 cases none similar.

*****PEPR*****

PO [REDACTED]

Tax # [REDACTED]

Shield: [REDACTED]

Cmd: IAB (Formally assigned to the 79th pct)

Appt. Date: 07/09/2012

Not Sick/Not Chronic

Full Duty/Active

Arrest History: 62, Felonies 19, Violations 10, Misdemeanors 32, Infractions 1

No Monitoring Records

ICMS:

05/30/2017, C17-0283, MOS/MOS Altercation (This Case)

10 other cases none similar.

CPI

05/19/2016, M16-1353, Paid Detail Incident, Exonerated

IAPRO

Nothing to report

CCRB

2 cases none similar.

*****PEPR*****

PO [REDACTED]

Tax # [REDACTED]

Shield [REDACTED]

Cmd: IAB (Formally assigned to the 79th Pct)

Appt. Date: 01/09/2006

Not Sick/Not Chronic

Full Duty/Active

Arrest History: 133, Felonies 31, Violations 12, Misdemeanors 89, Infractions 1

No Monitoring Records

ICMS:

05/30/2017, C17-0283, MOS/MOS Altercation (This Case)

1 other case none similar.

CPI:

08/17/2013, Chronic Sick-A, CSL 4X since 10/12/12

04/13/2010, M10-0805, Internal Investigation, Domestic Verbal, Unsubstantiated

12/11/2008, Chronic Sick-B, CSL 4X since 01/22/08

12/02/2008, Chronic Sick-B, Chronic Sick-B since 04/23/08 over 40 days

09/17/2008, Chronic Sick-B, CSL 6X since 03/14/07

08/19/2008, Chronic Sick-B, CSL since 10/28/06

10/10/2007, M07-2237, Internal Investigation, Dispute Off-Duty, Unsubstantiated

05/03/2007, M07-1007, Internal Investigation, Domestic Aggravated Harassment, Unsubstantiated

IAPRO

2 other cases none similar.

CCRB

3 cases none similar.

Conferrals Conducted:

IAB Intel RFI # 17-0567

PO David Arroyo is the delegate, has time on, works midnights and seems cool. Agent has no knowledge of the incident on 05/13/17 regarding the allegation of intimidation/retaliation.

PO Alexandro Berrios works midnights, has time on and comes off arrogant. Agent had no knowledge of the incident on 05/13/17 regarding the allegation of intimidation/retaliation.

PO Jason Frederick has time on, speaks with arrogance, has an ☐ I don't care attitude ☐ S/O ☐ Shit cans ☐ jobs.

IAB Intel RFI # 18-0459

Agent [REDACTED] assigned to the 79th Precinct reported the agent was unfamiliar with PO [REDACTED] PO [REDACTED] PO Berrios, PO Frederick and PO Melendez and therefore could not elaborate regarding allegations. The agent adds that PO Arroyo is the PBA Delegate and all the other S/Os are assigned to the 1st Platoon. The 1st Platoon is composed of senior cops who conduct themselves as a Click. These senior officers are characterized as arrogant and snotty. They also resent the fact that when newly assigned officers arrive and are assigned to the 1st Platoon. The new officers are encouraged to generate enforcement activity. The senior officers tend to feel the new officers are making them look bad because they are not generating the same level of enforcement activity. The agent believes that the circumstances in question are isolated to the 1st Platoon. Agent affirms that officers on the 2nd and 3rd Platoon are a tighter group that back each other up when needed.

The agent also stated that the S/O PO Arroyo is considered a cool person who is very helpful to new officers at the command. Agent stated that S/Os PO Frederick and PO Berrios are both considered very respectful and decent people to deal with on occasion. Agent further stated that S/O PO Melendez has recently had arguments with her former partner, PO [REDACTED]. The verbal disagreement is unknown to what exactly they were disputing about. Agent has no further information at this time.

Proactive Measures:

> MOS were wearing Dingo's and recorded conversations with PO David Arroyo.

> OEEO was notified and conferred with, Det Dejesus who assigned the inquiry Log # I211S18 stated that this case doesn't fall under the purview of OEEO.

PO [REDACTED]'S RECORDING:

PO Arroyo 0420 on the recording states --- Remember when I talked to you guys about summons activity. I said everyone should stay on the same plane but if you go out and write summons that is not a problem for me that's on you.

PO Arroyo 0518 on the recording states --- Remember when I said about the summonses that we should stay on the same plane of summonses, Don't go crazy. If we all stay the same it's all good. After I said that Chell called me and said "Dave listen is someone telling people on the midnight not to write summonses." I was like I'm not telling anyone not to write summonses. What are you talking about. I'm thinking hold on a minute I just told [REDACTED] and [REDACTED] How is this going to look to you. Two days later this man calls me up.

PO [REDACTED]'S RECORDING:

PO [REDACTED] on the recording states --- And this thing with PO Melendez coming back and telling the midnights that I snitched on her.

PO Arroyo responds --- Hold on. I'm going to say one thing, Melendez didn't say nothing to nobody. I heard that from the lawyer and that bothered me to. I felt like that's your partner you should have had.....

PO Arroyo on the recording states --- When you first started working with [REDACTED] and I talked to you about the summonses and I said we should all stay in the same line of summonses, same number of summonses and you said no problem, this and that and a couple days later I got a call from fucking Chell telling me that people are telling people on midnights not to do activity. PO Arroyo on the recording states --- Where did he hear this from I just told you this a couple days ago and this guy is calling me up. I'm thinking damn why would [REDACTED] do that to me. Why would she fucking say something to somebody.

PO Arroyo on the recording states -- - You and [REDACTED] are the only person I talked to about that. I'm saying how does it look to me.

Patrol Guide 206-13 Hearings:

> Police Officer [REDACTED] was interviewed as a witness officer on Friday, December 15, 2017. PO [REDACTED] stated that she has been in the 79 Precinct for 11 years and assigned to the 1st platoon for approximately 1 year (from 2nd platoon). PO [REDACTED] stated that she ended up partnering with PO [REDACTED] in 2016. PO [REDACTED] stated that PO [REDACTED] was working with PO Melendez prior to her and the breakup was due to prior PG 206-13 Hearings of PO Melendez and the way PO Melendez conducts herself when she arrests people in the street. PO [REDACTED] stated that the climate was very welcoming when she arrived on the 1st platoon. PO [REDACTED] stated that everything was going well until she was approached by Union Delegate PO Arroyo regarding to her activity which surpassed others on the 1st platoon. PO [REDACTED] stated that this interaction was approximately 1 month when she arrived on the 1st platoon. PO [REDACTED] stated that PO Arroyo stated that they usually do 2-3 summons per month. PO [REDACTED] stated that she said that she will do "whatever activity is necessary" and PO Arroyo then walked away.

PO [REDACTED] stated that PO Arroyo addressed the 1st platoon Roll Call a few days later stating, "There are people trying to cause trouble on the platoon". PO [REDACTED] stated that PO Arroyo received a phone call from the CO of the 79 Precinct regarding him approaching Officers regarding their activity and shared that with the 1st platoon. PO [REDACTED] stated that Officers began to give her "little jabs" stating that she has a "day tour mentality". PO [REDACTED] stated that the first Officer to say something to her was PO Palomino. PO [REDACTED] stated that Officers on her tour would not speak to her, basically all of Squad A1 however most of Squad A3 would speak to her. PO [REDACTED] stated that she then would have a 34 and only her sector would show up. PO [REDACTED] stated that Lt. Vasquez showed up to her job and stated, "Where is your back up". PO [REDACTED] stated that this lasted for months that she was not

being backed up. PO [REDACTED] stated that she conferred with Sgt. SingKean regarding the incident at a time when she was not backed up. PO [REDACTED] stated that Supervisors continually stated to "back each other up" at roll calls.

PO [REDACTED] stated that on May 13, 2017 she had a verbal altercation with PO Frederick and PO Berrios. PO [REDACTED] was dispatched to Kings County for a job in her Sector. PO [REDACTED] stated that Central was giving a job in her Sector to PO Berrios and PO Frederick who argued with Central regarding being assigned a job in PO [REDACTED]'s sector. PO [REDACTED] stated that she was doing a report in her car when PO Berrios and PO Frederick drove past her out of the confines of the 79 Precinct. PO [REDACTED] stated that PO [REDACTED] called Sgt. Chance and asked if he sent someone to look for us who stated "No" and provided the names of the Officers who drove past her. PO [REDACTED] stated that she walked into the Command after EOT. PO Frederick, Berrios and Arroyo were present. PO [REDACTED] stated that PO Frederick stated, "It does not take that long to do a 61, get off the midnights, no one likes you" and PO Arroyo concurred with the comments from PO Berrios and called PO [REDACTED] and PO [REDACTED] "Rats".

PO [REDACTED] stated that PO [REDACTED] then had a conversation with PO Arroyo in which she was not involved in. PO [REDACTED] stated that PO Arroyo said to PO [REDACTED] that the PBA lawyer said to PO Melendez that her partner "threw her under the bus" and she might lose her job or vacation days. PO [REDACTED] stated that Sgt. Chance was present and overheard the argument. PO [REDACTED] stated that this incident made her get off the tour and she did not inform Lt. Hardell (Admin Lt) what the circumstances were. PO [REDACTED] stated that she then saw Lt. Singh (ICO) and informed him what was going on. PO [REDACTED] stated that Lt. Singh conferred with the CO of the 79 Precinct and informed him to make the proper notifications. PO [REDACTED] stated that she went to PO Walsh and PO Taveras regarding the incident so they can resolve it (not being backed up) and nothing was done and they thought it was a big joke. PO [REDACTED] stated that one time, Lt. Singh did a midnight and had PO [REDACTED] and PO [REDACTED] drive them when he was on the midnights and may have been not backed up due to that issue as well. PO [REDACTED] stated that PO Taveras does not say anything verbally to her however stares her down when he has an opportunity.

>Police Officer [REDACTED] was interviewed as a witness officer on Thursday, January 18, 2018. PO [REDACTED] stated that she has been in the 79 Precinct for 6 years and currently on the 3rd Platoon. PO [REDACTED] stated that prior to that she was on the 1st Platoon and everyone was "Casual and clicky". PO [REDACTED] stated that she was partnered with PO Sandra Melendez for 2 years and then partnered with PO [REDACTED] and is currently on the 3rd platoon because she did not feel safe on the 1st Platoon. PO [REDACTED] stated that the reason she moved was because she was not being backed while on patrol. PO [REDACTED] stated that the Union Delegate, PO Arroyo stated that they should only be writing 2 summonses a month and everyone has to "stick together". PO [REDACTED] stated that they will be writing additional summonses regardless.

PO [REDACTED] stated that things began to change when she changed partners to PO [REDACTED] after there was a PG Hearing regarding a prior Group 54 Case involving PO Melendez and PO [REDACTED]. PO [REDACTED] stated that there was an allegation of FADO Force against PO Melendez and PO [REDACTED] was referred to as a "Rat" by PO Arroyo. PO [REDACTED] stated that this is when they started not being backed on heavy jobs. PO [REDACTED] stated that she also drove the ICO LT. Singh to get food and that contributed to being called a "Rat". PO [REDACTED] stated that one time she responded to a heavy Job and no one backed them however Sgt. Singkuan did respond to the job. PO [REDACTED] stated that Sgt. Singkuan conferred with Lt. Lubrano and the "not being backed up" was addressed at roll call. PO [REDACTED] stated that she still felt secluded with no backing. PO [REDACTED] stated that she only conferred with Sgt. Singkuan, no other Supervisor.

PO [REDACTED] stated that on May 13, 2017 at approximately 0300 hours, PO [REDACTED] and her partner, PO [REDACTED] responded to a severed limb job at [REDACTED]. PO [REDACTED] stated that she marked the job 90X. PO [REDACTED] stated that another job came over the air related to her previous 90X job and she had to go to KCH. PO [REDACTED] stated that as they were in route to KCH, another job came over in their sector (10-22) and Central was attempting to give the Job to sector C who was PO Alexandro Berrios, Tax # 929719 and PO Jason Fredrick, Tax # 930183. Sector C immediately put themselves out on a directed patrol, not to have the 10-22 assigned to them. PO [REDACTED] stated that Central assigned the job to Sector C after completion of their directed. PO [REDACTED] stated that there was an exchange of words between Central, 79C and her partner PO [REDACTED]. PO [REDACTED] stated that 79C was ultimately assigned the job. PO [REDACTED] stated that 79C (instead of driving to the job), went to KCH and looked in the RMP PO [REDACTED] and PO [REDACTED] were sitting in, laughed, put the RMP in reverse and left the area.

PO [REDACTED] stated that she called Sgt. Andrew Chance, Tax # 928054 and asked if anyone sent 79C over to the hospital and Sgt. Chance replied, "No". PO [REDACTED] stated that as she went back to the precinct at the end of tour, PO Berrios, PO Fredricks and union delegate PO David Arroyo, Tax # 903366 were present between the two (2) glass doors that exit the rear of the stationhouse. PO [REDACTED] stated that when they were passing, the Officers said, "How long does it take to do a 61?". PO [REDACTED] stated, "What you said?" and a verbal altercation between all five (5) Officers transpired. PO [REDACTED] stated that there was not a Supervisor present when this occurred at approximately 0730 hours. PO [REDACTED] stated that Officers continued by saying, "No one likes you, get off the tour" and PO [REDACTED] said, "Fuck off" and looked at PO [REDACTED] and said, "Fuck them" and walked away. When the altercation was over, PO [REDACTED] was completing an Aided on a computer and requested PO Arroyo over to her location. PO [REDACTED] stated that she explained to PO Arroyo that she would have went to the job but she was dealing with a severed limb job that was important. PO [REDACTED] stated that she wanted to know why she is being called a "snitch". PO Arroyo stated, "Because Sandy (PO Melendez, Tax # 939801) said the PBA lawyer said that you are a snitch. PO [REDACTED] stated that PO Arroyo then indicated, "You gave your partner up". PO [REDACTED] stated that his conversation was approximately at 0750 hours. PO [REDACTED] stated that she just left the conversation and PO Arroyo walked away.

PO [REDACTED] stated that she then went to Admin Lt. Hardell and requested a tour change to the 3rd platoon. PO [REDACTED] stated that she saw Lt. Singh on the 3rd Platoon and made him aware of the incident between PO Frederick and PO Berrios On 05/13/17 and that is when Lt. Singh made a notification to IAB on 05/30/17, approximately 2 and a half weeks later.

>Sergeant Andrew Chance, Tax # 928805 was interviewed as a witness officer on Wednesday, February 12, 2018. Sgt. Chance

stated that he has been in the 79 Precinct for 10 years and has been on midnights for 1 and a half years. Sgt. Chance stated that the general climate of the command was "ok" and the enforcement was 1-2 arrests per quarter and was "typical for the midnights" and the average summons activity was different every month, approximately 5 per month. Sgt. Chance stated that PO [REDACTED] and PO [REDACTED] were good with traffic enforcement (8-9 per summons a month). Sgt. Chance stated that he was never aware that PO [REDACTED] and PO [REDACTED]'s job was negatively impacted due to their summons activity and he not aware of Delegates or any other Officers telling the their peers to be on the same plane. Sgt. Chance stated that he was never aware of PO [REDACTED] and PO [REDACTED] were not being backed up on jobs.

Sgt. Chance stated that PO [REDACTED] and PO [REDACTED] did on one occasion call him to one of her jobs at KCH (05/13/17). Sgt. Chance stated that when he arrived, one of the Officers stated that another Sector, PO Frederick and PO Berrios passed by her and just looked at them. Sgt. Chance stated that he did not authorize them to be out of the command and was unaware that this had transpired. Sgt. Chance stated that once at the Precinct 124 room, he confronted PO Berrios and PO Frederick if they indeed went to KCH and they stated that they just wanted to "check on them". Sgt. Chance stated that answer was satisfactory to him and gave them verbal instruction not to leave the command without his permission. Sgt. Chance stated that he is unaware if the Officers put themselves out of sector over the air and did not see why they would have to check on PO [REDACTED] and PO [REDACTED]. Sgt. Chance stated that he is unaware of any disputes between Officers however did see all four Officers and their Delegate (PO Arroyo) outside by the rear of the precinct (unknown what the conversation was in regards to)

> Lieutenant Sunil Singh, Tax # 929179 was interviewed as a witness officer on Friday, December 15, 2017. Lt. Singh stated that he has been in the 79 Precinct for approximately 5 years. Lt. Singh stated that the general climate of the 1st Platoon is a "tight knit, stay to themselves group". Lt. Singh stated that he heard from Traffic Stat that their performance is sub-par compared to other platoons. Lt. Singh stated that he had a conversation with PO [REDACTED] while she was recently assigned to the 3rd platoon and PO [REDACTED] stated that she was switched from the 3rd platoon because she did not feel safe due to the fact she was not backed on heavy jobs. Lt. Singh stated that he also had a conversation with PO [REDACTED]'s partner who stated the reason they were not being backed up was because it was alleged that PO Melendez was "thrown under the bus and possibly going to loose her job" after PO [REDACTED]'s PG 206-13 Hearing (prior Group 54 C Case where PO Melendez was a Subject). Lt. Singh indicated that PO [REDACTED] said that she heard this information possibly from Union Delegate, PO Arroyo when he spoke with other members of the 1st Platoon.

In addition, Lt. Singh stated that approximately 1 year prior, they (PO [REDACTED] and PO [REDACTED]) were approached by PO Arroyo regarding writing too many summons on the 1st Platoon. Lt. Singh stated that he conferred with Inspector Chell who possibly conferred with PO Arroyo regarding the summons issue. Lt. Singh stated that he addressed the platoon with Inspector Chell regarding the summons activity.

Lt. Singh stated that a situation arose where PO Frederick and Berrios were assigned a job in PO [REDACTED] and PO [REDACTED]'s sector. PO Frederick and PO Berrios went outside the confines of the 79 Precinct and went to Kings County Hospital to check on PO [REDACTED] and PO [REDACTED] which was not authorized as far as he is aware. Lt. Singh stated that PO [REDACTED] and PO [REDACTED] were unaware why PO Frederick and PO Berrios went outside their sector and the confines of the 79 Precinct to "check on them". Lt. Singh stated that at the end of tour, PO [REDACTED] and PO [REDACTED] had a conversation with PO Berrios and PO Frederick with PO Arroyo present. Lt. Singh stated that discussion was regarding PO [REDACTED] and PO [REDACTED] not answering a job in their sector that Central was trying to assign them. Lt. Singh indicated that the conversation was heated and confrontational as per PO [REDACTED] and PO [REDACTED].

Lt. Singh stated that he did not conduct any investigation outside of calling IAB once he was aware of the issue however he did perform an AVL check on PO Fredrick and PO Berrios to see if they went to the hospital, which they did.

> Police Officer Alexander Berrios, Tax # 929719 was interviewed as a subject officer on Wednesday, February 28, 2018. PO Berrios stated that on May 13, 2017, he was working a [REDACTED] Tour of duty with PO Fredrick in RMP # [REDACTED] Sector C, Operator. PO Berrios stated he has been in the 79 Pct for 14 years on the midnight tour and indicated that the tour is a "tight group" of Officers. PO Berrios stated that on this date, he had a disagreement with Sector A, PO [REDACTED] because it takes them too long to complete jobs and they hold them for a lengthy time, malingering. PO Berrios stated that he conferred with his Union Delegate, PO Arroyo who reassured him he would speak with Supervisor's regarding the malingering (holding on to jobs) of PO [REDACTED] and nothing came of it. PO Berrios stated that he does not have any specific date or times the malingering occurred. PO Berrios stated that PO [REDACTED]'s safety was never compromised and were always backed up on jobs regardless of the conflict. PO Berrios stated that he conferred with PO [REDACTED] twice regarding "Sector Integrity" to no avail. PO Berrios stated that PO [REDACTED] do not back up on priority jobs, even in their own sector.

PO Berrios stated that on this specific date, Central assigned them a job in PO [REDACTED]'s sector and instead of going to the job (which was not in his activity log) he went to KCH without permission from the Patrol Supervisor, Sgt. Chance. PO Berrios stated that he was "fed up" with it, wanted to see the malingering for himself and went out of the Command/Boro to check on PO [REDACTED] at KCH and he indeed did see them sitting in a car, looking at their phones. PO Berrios stated that he saw the Officers, looked at them for 30 seconds, reversed the car and "took off" going to the job that was assigned in PO [REDACTED]'s sector. PO Berrios stated that when he arrived to the Command at the end of Tour, Sgt. Chance stated that he wanted to speak with him. PO Berrios stated that Sgt. Chance wanted to know why they left the Boro and PO Berrios stated that he wanted to see PO [REDACTED]'s malingering for himself. PO Berrios stated that he then conferred with PO Arroyo about what he witnessed at KCH. PO Berrios stated that PO [REDACTED] were walking into the rear of the Command between the two doors when PO [REDACTED] said, "I know you are talking about me, how dare you check up on me with jobs" and continued, "I know you guys are trying to get me thrown off the midnights". PO Berrios stated, "I just want you to do your job, why did it take so long for you to answer your job?" and the conversation became louder and louder and turned into a heated argument between the two Sectors. PO [REDACTED] stated, "It's ok, it's ok, I am going to fix this" and they both walked away. PO Berrios stated that PO Arroyo and PO Frederick were

saying "similar" things towards them. PO Berrios stated that PO Frederick said that "You are always riding in the back with the ICO, and that does not look right".

PO Berrios stated that his performance on the tour is on the "down side" getting 2-3 summons a month and he tries to get a collar when he can. PO Berrios stated that he is unaware of PO [REDACTED]'s activity. PO Berrios stated that Delegate's never conferred with him about activity (keeping it around a certain number). PO Berrios stated that he knows that PO Melendez and PO [REDACTED] were former partners however does not know why the partnership dissolved. PO Berrios stated that he never called PO [REDACTED] a snitch and never overheard that said. PO Berrios stated that he is unaware there was a prior complaint about [REDACTED]'s testimony in a PG Hearing regarding PO Melendez.

>Police Officer Jason Frederick, Tax # 930183 was interviewed as a subject officer on Wednesday, February 28, 2018. PO Frederick stated that he has been in the 79 Pct. on the 1st Platoon for approximately 12-13 years. PO Frederick stated that the general climate in the command is "pretty good". PO Frederick stated that the entire 1st Platoon had a problem with PO [REDACTED] who do not have a good work ethic, they "milk" jobs all night and when you say something to them, they get mad. PO Frederick stated that this is a pattern of behavior that had been continuing for months. PO Frederick stated that PO [REDACTED] did not back people up. PO Frederick stated that he never observed sectors not backing up PO [REDACTED] due to their work ethic.

PO Frederick stated that, he and PO Berrios conferred with PO Arroyo (Union Delegate) who went to "Bosses" and nothing was ever done. PO Frederick stated that he never officially went to a Supervisor regarding this issue. PO Frederick stated that on May 13, 2017, they were relieving the THV on Myrtle Ave. and PO [REDACTED] received a job at KCH that took quite a while. PO Frederick stated that central assigned them a job in PO [REDACTED]'s Sector. PO Frederick stated that PO Berrios (his partner) suggested that they go to KCH to see if PO [REDACTED] are there and they were there, playing on their phones, not doing anything. PO Frederick stated that PO [REDACTED] rolled down the window, PO Berrios and PO Frederick drove away and answered the job that was assigned in PO [REDACTED]'s Sector. PO Frederick stated that at the end of tour at the command, Sgt. Chance confronted him regarding why he went to KCH and was told never to do that again and this is going to go above his head and something is going to happen.

PO Frederick stated that PO Arroyo then came in for the end of tour, they were in the vestibule in the rear of the precinct when PO [REDACTED] arrived. PO Frederick stated that suddenly, between the doors, PO [REDACTED] and [REDACTED] began to state, "Why are you guys checking up on us". PO Frederick stated that, they accused PO Arroyo of sending them and it then became a shouting match for less than 5 minutes between them. PO Frederick stated, "Just do your job, it's not that hard". PO Frederick stated that he does not remember telling them to get off the tour however he did say that "No one likes you, because no one wants to do your job for you and you are riding around with the ICO" to PO [REDACTED]. PO Frederick stated that he does not recall saying if the Officers should "get off the tour". PO Frederick stated that he does not recall using the word "snitch" when referring to PO [REDACTED]. PO Frederick stated that it is "probably not" his responsibility to address Officer's performance and reiterated that he never went to a Supervisor regarding this issue. PO Frederick stated that his activity is 2-3 summons a month and gets a collar when he can and states his activity is from "average to below average". PO Frederick stated that he does not know PO [REDACTED]'s activity. PO Frederick stated that no one ever said that they should write a certain number of summons or be on the same "plane", no one has ever not backed anyone up due to their activity.

PO Frederick stated that in the past, PO Melendez/[REDACTED] worked together however PO Frederick does not know why they split up. PO Frederick stated that he heard that PO [REDACTED] said something at a GO (regarding her former partner PO Melendez) however does not know what the particulars are. PO Frederick stated that he does not know what the Charges are to PO Melendez and does not even know what the incident date was. PO Frederick stated that he does not know what PO [REDACTED] said at the GO and does not know from whom he heard that. PO Frederick stated that he heard PO Stone said something "Out of left field" that got PO Melendez in trouble. PO Frederick does not remember any additional details.

In conclusion, PO Frederick stated he did not have permission to leave the command to go to Kings County Hospital to check on PO [REDACTED] and [REDACTED] and he did not notify Central that he was leaving the Command.

>Police Officer David Arroyo, Tax # 903366 was interviewed as a subject officer on Wednesday, March 21, 2018. During this interview PO Arroyo was not confronted with his recorded conversations. PO Arroyo stated that he has been in the 79 Precinct for 24 years, currently assigned as the the Property Officer and prior to that he was as signed to the midnights for approximately 7 years, Sector Charlie on Patrol. PO Arroyo stated that while he was on midnights, there was good camaraderie and everyone was a "tight bunch of guys". PO Arroyo stated that PO [REDACTED] and PO [REDACTED] (in his 24 years) are the most selfish Officers he has ever come across. PO Arroyo stated that they do not pick up their jobs. PO Arroyo stated that specifically PO Berrios and PO Frederick stated to him, "Why are PO [REDACTED] and PO [REDACTED] not picking up their jobs and riding around with the ICO in their car?" PO Arroyo stated that he was aware of other Officers with the same concern, including PO Melendez however, PO Arroyo does not recall who they are. PO Arroyo stated that he directly approached PO [REDACTED] regarding this issue and the response was "I am keeping the ICO away from the jobs". PO Arroyo stated that he conferred with Lt. Lubrano about this issue and Lt. Lubrano stated that he would confer with the ICO, Lt. Singh. PO Arroyo stated that he never conferred with Lt. Singh regarding driving around with PO [REDACTED] and PO [REDACTED]. PO Arroyo stated that he did not confer with any other Supervisors.

PO Arroyo stated that his general enforcement activity on the 1st platoon was a collar a month and/or 4 Summons, no one had a set number of what there was to do. PO Arroyo stated that there is no average achieved or attained regarding enforcement. PO Arroyo stated that he never conferred with any UMOS regarding enforcement activity or stated that they should be on the same "plane". PO Arroyo stated that he never had that conversation with PO [REDACTED] and PO [REDACTED]. PO Arroyo stated that he did have a conversation with Inspector Chell who said to PO Arroyo, "Is someone telling Officers not to write on the midnights?" and PO Arroyo stated, "No, no one cares (about activity) as long as they handle their sector". PO Arroyo stated that he may have said

"People are trying to cause trouble on the platoon" post-roll call regarding PO [REDACTED] and PO [REDACTED]. PO Arroyo stated that everyone still backed each other up on jobs especially PO [REDACTED] and PO [REDACTED] whom PO Arroyo does not like.

PO Arroyo stated that PO [REDACTED] was on the 1st platoon for approximately 2 years. PO Arroyo is unsure how long PO [REDACTED] was on the 1st Platoon. PO Arroyo stated that there were no issues when PO [REDACTED] and PO [REDACTED] arrived on the tour. PO Arroyo stated that PO [REDACTED] worked with PO Melendez prior to her partnership with PO [REDACTED]. PO Arroyo stated that the partnership broke up because "something" happened in the hospital and was informed by PO Melendez that PO [REDACTED] did not have the same "Policing style". PO Arroyo stated that he knows that there was a violent EDP prisoner at the Hospital and PO Melendez had to restrain the EDP by herself, alone with an EMT and PO [REDACTED] did not assist. PO Arroyo stated that he was not present at the PG 206-13 Hearing of PO Melendez. PO Arroyo stated that he never conferred with Lawyers regarding the incident at the Hospital. PO Arroyo stated that he was never aware of what transpired in the PG's of PO [REDACTED], PO Melendez and PO [REDACTED] and never spoke to any Lawyer regarding such. PO Arroyo stated that no one ever conferred with him regarding what PO [REDACTED] said in her PG Hearing (that negatively impacted PO Melendez). PO Arroyo replied "no" once the question was asked again. PO Arroyo stated that he does not know the outcome of PO Melendez's case however knows that she received Charges.

PO Arroyo stated that PO Frederick said to him that "PO [REDACTED] and PO [REDACTED] do not have a good work ethic and they milk their jobs". PO Arroyo stated that he did say that he was going to confer with a Supervisor regarding their complaint however he felt best that since the issue involved a Lt, it was best to confer with Lt. Lubrano (which was approximately one year ago). PO Arroyo stated that there were no further conversations regarding PO [REDACTED] and PO [REDACTED] with any Supervisor.

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PO Arroyo stated that he was working that night, assigned to response auto and was then post changed to the 81 Precinct where he worked the entire night. PO Arroyo stated that he was not aware of any 79 Pct. jobs because they are not on the same frequency. PO Arroyo stated that he was not aware of an on-air dispute between a sector and central. PO Arroyo stated that when he returned to the precinct at approximately 0700 hours, PO Frederick and PO Berrios approached him regarding that they left the command to "check" on PO [REDACTED] and PO [REDACTED] because they were handling jobs in PO [REDACTED] and PO [REDACTED]'s sector and saw them "malingering" once at the hospital (sitting in the RMP on their phones).

PO Arroyo stated that PO [REDACTED] and PO [REDACTED] conferred with the Patrol Sergeant Chance (regarding being checked on) and PO Frederick and PO Berrios were instructed by Sgt. Chance not to take it upon themselves to leave the Command. PO Arroyo stated that they were approached in the rear of the command by PO [REDACTED] and PO [REDACTED] at the end of tour in the rear of the Command by the vestibule. PO Arroyo stated that PO [REDACTED] then said, "You guys have a problem with us?" PO Arroyo stated that he, PO Frederick and PO Berrios were present. PO Arroyo stated that, "Yes, we have a problem, you are slacking off on the job!". PO Arroyo stated that PO [REDACTED] and PO [REDACTED] denied the accusation and that PO Arroyo was biased towards them because PO Arroyo is friends with PO Melendez. PO Arroyo stated, "Do what you are supposed to do". PO Arroyo stated that it was a heated conversation on the side of PO Frederick and PO Berrios and he was not impartial because PO [REDACTED] and PO [REDACTED] were wrong. PO Arroyo stated that he did not send PO Berrios and PO Frederick to check on PO [REDACTED] and PO [REDACTED]. PO Arroyo stated that he called them a "Snitch" because they went to Sgt. Chance about the situation and not going to him prior. PO Arroyo stated that no other Officer called PO [REDACTED] and PO [REDACTED] a snitch. PO Arroyo stated that he did not overhear "Nobody likes you, get off the tour". PO Arroyo stated that this heated conversation was going on for several minutes. PO Arroyo stated that he does not remember the exact words that were said. PO Arroyo stated that PO Frederick's may have said, "No one likes you, get off the tour". PO Arroyo stated that they then walked away and he had a one on one conversation with PO [REDACTED] regarding handling her Sector correctly. PO Arroyo stated that he did not call them "Rats", no other Officer called them "Rats" as well. PO Arroyo stated that he spoke to PO [REDACTED] again afterwards and PO Arroyo reiterated to "Do what you are supposed to do" and not to ride around with the ICO. PO Arroyo stated that it has nothing to do with PO Melendez only with PO [REDACTED] and PO [REDACTED] not handling your Sector. PO Arroyo stated that he never said, "You are a snitch, you gave your partner up" to PO [REDACTED].

In Conclusion, PO Arroyo reiterated that activity was never important and PO [REDACTED] and PO [REDACTED] being active never negatively impacted them in any way, specifically regarding not being backed up. PO Arroyo stated that they were always backed up and he was never aware that they felt unsafe on the tour and their safety was never compromised. PO Arroyo stated that PO [REDACTED] was never not backed up because she was PG'd due to PO Melendez's IAB Case. PO Arroyo stated that he does not remember PO [REDACTED] and PO [REDACTED] ever saying to him that they wanted to leave the tour and does not know why they left the tour.

>On Wednesday, April 11, 2018 a second PG 206-13 Hearing was conducted of PO David Arroyo, Tax # 903366. During this hearing PO Arroyo was confronted with the recorded conversations.

PO Arroyo was asked if he ever had a discussion with PO [REDACTED] regarding not being backed up and then acknowledging that they were not being backed up, PO Arroyo responded, no.

PO Arroyo was asked if he ever had a conversation with PO [REDACTED] regarding being on the same plane regarding summons, PO Arroyo responded, no.

PO Arroyo stated that Inspector Chell called him and asked him if someone on the midnights is telling people not to write summons (meaning PO Arroyo), PO Arroyo responded, no.

PO Arroyo was asked if he ever had a conversation with PO [REDACTED] stating to stay on the same line of summons and same number of summons, PO Arroyo responded, no.

PO Arroyo was asked if he had a conversation with PO [REDACTED] stating that PO [REDACTED] snitched and that he heard it from a PBA Lawyer, PO Arroyo responded, no.

Audio was played of PO Riley stating that she was not being backed up (to PO Arroyo). PO Arroyo stated that PO [REDACTED] and PO [REDACTED] were always backed up.

Audio was played where PO Arroyo stated "Everyone should stay on the same plane", PO Arroyo stated that it sounds like his voice however does not know what the context of the conversation was.

Audio continued being played and PO Arroyo stated in his audio, "Remember when I said about the summonses that we should stay on the same plane of summonses, Don't go crazy. If we all stay the same it's all good. After I said that Chell called me and said "Dave listen is someone telling people on the midnight not to write summonses." I was like I'm not telling anyone not to write summonses. What are you talking about. I'm thinking hold on a minute I just told [REDACTED] and [REDACTED] How is this going to look to you. Two days later this man calls me up. PO Arroyo stated that he did not recall saying that and then said that he wanted to keep the Officers safe, being careful. PO Arroyo stated that it is dangerous doing car stops. PO Arroyo stated that he was not telling them (PO [REDACTED] and PO [REDACTED]) not to write summons however that it is dangerous writing summons. When questioned why he stated what does being on the same plane mean? PO Arroyo stated that every individual Officer write in their own style, in their own way and stated he meant don't go crazy writing a lot of summons because it is not safe.

PO Arroyo stated that Supervisor's do not dictate activity and he was not dictating activity either. PO Arroyo stated he was not giving a number however just inferring that they are to be safe. PO Arroyo stated he never told anyone not to write summons and reiterated stating that he just wanted them to be safe and don not get hurt.

PO Arroyo stated that not backing someone is a serious offense and he was not aware of anyone not backing PO [REDACTED] and PO [REDACTED].

On the recording it states, "When you first started working with [REDACTED] and I talked to you about the summonses and I said we should all stay in the same line of summonses, same number of summonses and you said no problem, this and that and a couple days later I got a call from fucking Chell telling me that people are telling people on midnights not to do activity". PO Arroyo stated that he does not set the number of summons and every Officer writes to their own doing. PO Arroyo stated that he is not putting a limit on the number of summons.

When asked if a Delegate should be dictating how many summons to write, PO Arroyo stated that he did not state that however the more cars you stop, the more dangerous it is.

On the recording it states, "Where did he hear this from? I just told you this a couple days ago and this guy is calling me up. I'm thinking damn why would S tone do that to me? Why would she fucking say something to somebody?" PO Arroyo stated that he had no knowledge that PO Stone went to Inspector Chell and the conversation with [REDACTED] had happened prior (few days) before PO [REDACTED] conferred with PO Arroyo.

PO Arroyo agrees that he said, "Same number of summons" regarding his conversation with PO [REDACTED]

On the recording it states, "And this thing with PO Melendez coming back and telling the midnights that I snitched on her. PO Arroyo responds, "Hold on, I'm going to say one thing, Melendez didn't say nothing to nobody. I heard that from the lawyer and that bothered me to."

PO Arroyo stated that he never spoke with any Lawyer regarding PO [REDACTED]'s case, he did not get info from a Delegate, PO Melendez or any Lawyer. PO Arroyo stated that he made it up because he wanted to and they do not handle their jobs and they did not back PO Melendez and if they handled their jobs we would not be here dealing with this, and they are riding around in the car with the ICO. PO Arroyo stated he lied to PO [REDACTED] to bother her and she was the one in the hospital did not do what she was supposed to do on patrol.

PO Arroyo stated that he was just trying to bother PO [REDACTED] because she caused problems on the platoon (calling her a snitch). He now recalled calling her a "snitch" after he heard the recorded conversation and then remembered the conversation. PO Arroyo stated that he thinks PO [REDACTED] did not get involved in an incident at the hospital with PO Melendez because she was scared.

PO Arroyo stated that, "I think she snitched because I do" and I think she did because she snitched on PO Frederick's and Berrios"

PO Arroyo stated that he called PO [REDACTED] a "Snitch" to get under PO [REDACTED]'s skin.

PO Arroyo stated that he was actually trying to get under her skin because she was not doing what she was supposed to be doing. The reason they left is because they wanted to leave.

PO Arroyo stated that, "I was told there was a violent EDP prisoner and PO Melendez was trying to gain control and no one was helping her in which he heard from PO Melendez, PO [REDACTED] did not get involved and did nothing".

PO Arroyo stated, "I said before I did not like her, that doesn't mean we are not going to back her".

PO Arroyo stated, "I was getting under her skin because I wanted her to do what she was supposed to do and I wanted her to

answer the jobs and answer them in the right way."

PO Arroyo stated that he did not hear PO Frederick state that he wanted PO [REDACTED] and PO [REDACTED] off the tour. No one indicated to him that they wanted PO [REDACTED] and PO [REDACTED] off the tour.

PO Arroyo stated that, "If you don't pick up the jobs, get lost with the ICO, that is a problem".

PO Arroyo stated that he never instructed other Officers not to back up PO [REDACTED] and PO [REDACTED].

PO Arroyo stated on his original PG, when asked if he ever had a discussion with PO [REDACTED] about not being backed up, PO Arroyo replied "No". After he heard the recording today that refreshed his recollection, he then said, "yes".

PO Arroyo was asked if he stated in his original PG if he ever had a conversation with PO [REDACTED] regarding being on the same plane regarding summons, PO Arroyo responded, no. After he heard the recording today that refreshed his recollection, he then said, "yes" he had the conversation.

PO Arroyo was asked if he stated in his original PG if he ever had a conversation with PO [REDACTED] stating to stay on the same line of summons and same number of summons, PO Arroyo responded, no.

When asked in a prior PG (in which he denied), PO Arroyo stated that he now recalls saying (after his recollection was refreshed with the recording) that PO [REDACTED] snitched on her partner and he heard that from the PBA Lawyer. PO Arroyo stated that he did not recall that in a prior PG.

PO Arroyo stated that he wanted to bother her so he called her a snitch (PO [REDACTED]). PO Arroyo stated that he doesn't know if she snitched on her partner because he was not there. PO Arroyo then stated that he called her a snitch because of the incident with PO Frederick's and PO Berrios. PO Arroyo reiterated and said that to get under PO [REDACTED]'s skin.

PO Arroyo reiterated that he was not at the PG of PO [REDACTED] pursuant to PO Melendez's PG and does not know what she said.

PO Arroyo does not know if she snitched on her partner, but I said that they snitched on PO Frederick's and PO Berrios.

>Lieutenant Eric Lubrano, Tax # 924088 was interviewed as a witness officer on Friday, December 15, 2017. Lt. Lubrano stated that he was assigned to the 79 Precinct from 08/2014-04/2017. Lt. Lubrano stated that the morale was pretty low when he was assigned to the 1st Platoon and noticed the general demeanor was not "upbeat". Lt. Lubrano stated that he does not know of any disagreements between sectors specifically when he was assigned to the 79 Precinct. Lt. Lubrano stated that he did hear "rumblings" that a certain sector team was not being backed up, PO [REDACTED] and PO [REDACTED]. Lt. Lubrano stated that he decided to speak with PO [REDACTED] and PO [REDACTED] directly during October of 2016. Lt. Lubrano stated that he said if they feel unsafe, they could come to him directly. Lt. Lubrano stated that the Officers appreciated speaking to them and that was "the end of it".

Lt. Lubrano stated that both PO [REDACTED] and PO [REDACTED] were a good team. Lt. Lubrano stated that they did not specifically discuss they were not being backed up and did not expand upon it. Lt. Lubrano stated that he then monitored the radio and if he heard a heavy job come over, he ensured Central sent another car. Lt. Lubrano stated that nothing really came up where Officers were not being backed up during his monitoring. Lt. Lubrano stated that he did address the platoon and make a statement to ensure Officers are backing each other up. Lt. Lubrano stated that most sector cars had a collar and 4-5 summons each per month, mostly "A" summons and PO [REDACTED] and [REDACTED] were at the top of activity.

>Sergeant Nicko Singkuan Tax # 942552 was interviewed as a witness officer on Wednesday, February 12, 2018. Sgt. Singkuan stated that he has been in the 79 Precinct for 4.5 years and assigned to the midnights for 3 years (2014-2016). Sgt. Singkuan stated that the climate was "good" and everyone got along. Sgt. Singkuan stated that two Officers (PO [REDACTED] and PO [REDACTED]) stated they were not being backed up to their Supervisor, Sgt. Singkuan who then stated to "back each other up" while conducting roll call. Sgt. Singkuan stated that PO [REDACTED] and PO [REDACTED] did not give specific incidents and Sgt. Singkuan did not conduct an investigation regarding the issue because he did not witness the allegation. Sgt. Singkuan stated that he did not inform a Supervisor. Sgt. Singkuan stated that he did not specifically address the complaint when he conducted roll call.

Sgt. Singkuan stated that he did not know of the reason PO [REDACTED] and PO Melendez (former partner) did no longer partner together. Sgt. Singkuan stated that PO [REDACTED] (new partner) and PO [REDACTED] began to partner up and never witnessed any arguments between PO [REDACTED] and PO [REDACTED] with their peers.

Sgt. Singkuan stated that the performance of his squad was "pretty good". Sgt. Singkuan stated that his squad is in the middle of all the squads and activity is one arrest a quarter and two summons per month per Officer. Sgt. Singkuan stated that he has never heard of any Officer discussing speaking to the platoon on being on the same "plane" regarding performance/enforcement.

>Det Anthony Ward, PO Nicola Whittick, PO Herman Kirton, PO Jeanmarc Denis, PO Douglas Graham and PO Malcolm were all interviewed as witness officers. the following is a synopsis of their statements. They have never been approached regarding their summons activity by any Supervisor, Delegate or fellow Officer. No one ever discussed coming in at a certain "number" (regarding activity). Everyone backs each other up and the Supervisor state to back each other up during roll call.

Supervisory Deficiencies:

N/A

Conclusion:

On May 17, 2017 PO [REDACTED] and PO [REDACTED] reported they were being retaliated against by Police Officer David Arroyo, Police Officer Alexandro Berrios, and PO Jason Frederick, all assigned to the 79th Precinct, due to perceived testimony PO [REDACTED] gave pursuant to IAB case # C 16-0065. PO [REDACTED] was interviewed by IAB Group 54 on January 3, 2015 under the provisions of PG 206-13 as a witness officer in a case which involved her former partner PO Sandra Melendez. The case against PO Melendez was substantiated by IAB Group 54 for Force and Charges and Specifications were preferred. PO [REDACTED] and PO [REDACTED] reported that they did not feel safe while working on the 1st Platoon and were not being appropriately backed up on high priority jobs. This investigation disclosed that on May 13, 2017, PO [REDACTED] and PO [REDACTED] escorted an EDP to Kings County Hospital. The dispatcher assigned a job in their Sector to PO Frederick and PO Berrios who failed to immediately respond and render police services to a job properly assigned to them. PO Frederick and PO Berrios instead travelled outside the confines of their assigned sector, command and borough without permission or authority to go to Kings County Hospital. PO Frederick and PO Berrios have been interviewed under the provisions of PG 206-13. They both admitted to being out of sector, out of command and out of borough to check on PO [REDACTED] and PO [REDACTED] to ascertain if they are milking their job. They obtained no prior permission from a supervisor to go to the Hospital. This investigation disclosed that there was sufficient evidence to prove that the allegations against PO Berrios and PO Frederick of Other Dept Rules/Procedures Violation will be closed as SUBSTANTIATED. (Traveled outside the confines of his assigned sector and command without permission). Specification # 1. The allegation of Fail to Respond in a Timely Manner - to 911 Job will be closed as SUBSTANTIATED. Specification # 2.

Also on May 13, 2017 PO [REDACTED] and PO [REDACTED] were met by PO Frederick and PO Berrios as well as PO David Arroyo, who is the 79th Precinct Union Delegate. A heated verbal altercation ensues in the vestibule between the rear parking lot and the inside of the command in which PO Arroyo is clearly sided with PO Frederick and PO Berrios. During this dispute, it was alleged and admittedly said by PO Frederick to PO [REDACTED] and PO [REDACTED] that "Nobody likes you, why don't you get off the tour." The reasoning provided was that they do not handle jobs in their assigned sector. PO [REDACTED] and PO [REDACTED] were called snitches due to informing the Patrol Supervisor that PO Frederick and PO Berrios went to KCH. Additionally, PO Arroyo stated that the PBA lawyer said you gave your partner up, you're a snitch. She (PO Melendez) is going to lose her job or days because you snitched. During the internal investigation PO [REDACTED] and PO [REDACTED] recorded individual conversations between them and PO Arroyo on separate dates. During these recorded conversations, the officers confronted PO Arroyo regarding the dispute and the statements made. In his conversation with PO [REDACTED] PO Arroyo indicated the issue with PO Melendez and PO [REDACTED] is between them. He then referenced a prior conversation he had with PO [REDACTED] and PO [REDACTED] regarding everyone being on the same plane pursuant to summons activity. He stated Inspector John Chell approached him regarding summons activity and if anyone was telling the midnight to not write summonses. PO Arroyo stated he denied to Inspector Chell that anyone on the midnights were telling officers not to write. Inspector Chell was conferred with and confirmed this conversation as referenced by PO Arroyo took place. In the conversation with PO [REDACTED] she confronted him regarding his statement that PO Melendez told him that she snitched on her. PO Arroyo responded that he "Heard that from the lawyer and that bothered me too." PO Arroyo also references a prior conversation with PO [REDACTED] that we should stay in the same number of summonses and stated that Inspector Chell approached him about saying this. During PO Arroyo's two official Department interviews, he wrongfully made inaccurate or misleading statements as to conversations he had with PO [REDACTED] and PO [REDACTED] that were recorded by the officers. In the first PG 206-13 hearing of PO Arroyo he denied having the conversations but in the second PG 206-13 after being confronted with the recordings he then admitted the conversations took place. This investigation disclosed that there was sufficient evidence to prove that the allegations against PO Arroyo for Official Statement - Misleading Statement - PG will be closed as SUBSTANTIATED. Specification # 1. The allegation of MOS/MOS Incident (On Duty) - Retaliation will be closed as SUBSTANTIATED. Specification # 3. The allegation of Other Dept Rules/Procedures Violation will be closed as SUBSTANTIATED. (Influence Performance Activity) Specification # 2. This investigation also disclosed that the allegations against PO Melendez of Disclosing Confidential Information did not occur and as such it was closed out as UNFOUNDED.

This investigation has concluded and will be closed with an overall case disposition of Partially Substantiated.

Subjects Involved

Name	Status	Sex	Race	Dob
903366 DAVID ARROYO POM (079-079 PRECINCT)	UNIFORM MEMBER OF SERVICE	MALE		[REDACTED]

Allegations

1	Full Allegation	Classification	Allegation Index	Allegation Date	Finding	Finding Date
	MOS/MOS Incident (On Duty) - Retaliation - Other	Abuse of Dept Regulations	RET-Retaliation Other	05/30/2017	07 - Substantiated	10/15/2018

Comments

On May 17, 2017 PO [REDACTED] and PO [REDACTED] reported they were being retaliated against by Police Officer David Arroyo, Police Officer Alexandro Berrios, and PO Jason Frederick, all assigned to the 79th Precinct, due to perceived testimony PO [REDACTED] gave pursuant to IAB case # C 16-065. PO [REDACTED] was interviewed by IAB Group 54 on January 3, 2015 under the provisions of PG 206-13 as a witness officer in a case which involved her former partner PO Sandra Melendez, Tax # 939801. The case against PO Melendez was substantiated by IAB Group 54 for Force and Charges and

		Specifications were preferred. PO [REDACTED] and PO [REDACTED] reported that they did not feel safe while working on the 1st Platoon and were not being appropriately backed up on high priority jobs. On the morning of May 13, 2017 PO [REDACTED] and PO [REDACTED] were met by PO Frederick and PO Berrios as well as PO David Arroyo, who is the 79th Precinct Union Delegate. A heated verbal altercation ensues in the vestibule between the rear parking lot and the inside of the command in which PO Arroyo is clearly sided with PO Frederick and Berrios. During this dispute, it was alleged and admittedly said by PO Frederick to PO [REDACTED] and PO [REDACTED] that "Nobody likes you, why don't you get off the tour." The reasoning provided was that they do not handle jobs in their assigned sector. PO [REDACTED] and PO [REDACTED] were called "snitches" due to informing the Patrol Supervisor that PO Frederick and PO Berrios went to KCH. Additionally, PO Arroyo stated that "the PBA lawyer said you gave your partner up, you're a snitch. She (PO Melendez) is going to lose her job or days because you snitched." PO David Arroyo in a recorded conversation between himself and PO [REDACTED] stated in response to PO [REDACTED] inquiring why she was called a "Snitch" that he heard that from the lawyer and that bothered him. In a PG 206-13 interview PO Arroyo admitted that he lied and made the statements up to get under PO [REDACTED]'s skin. Said Police Officer David Arroyo, while assigned to the 79th Precinct and on-duty, on or about May 13, 2017 engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer called Police Officer [REDACTED] a "rat" as a direct result of perceived statements made by Police Officer [REDACTED] in a prior PG. 206-13 hearing and perceived statements made by Police Officer [REDACTED] to supervisors regarding Police Officer Arroyo's attempts to influence summons performance activity. As such the allegation of MOS/MOS Incident (On Duty) - Retaliation will be closed as SUBSTANTIATED. Specification # 3				
2	Full Allegation Modified MOS - Other - IAB	Classification NOTIFICATION/Additional Information	Allegation Index ADD-Additional Information	Allegation Date 10/04/2018	Finding 04 - Info. and Intelligence	Finding Date 10/15/2018
	Comments This investigation disclosed that on Thursday, October 4, 2018 PO. David Arroyo, Tax# 903366, was placed on modified assignment. The allegation of Modified MOS will be closed as Information and Intelligence.					
3	Full Allegation Charges & Specifications - IAB	Classification NOTIFICATION/Additional Information	Allegation Index CS-Charges and Specifications	Allegation Date 10/04/2018	Finding 04 - Info. and Intelligence	Finding Date 10/15/2018
	Comments This investigation disclosed that on September 26, 2018, Charges & Specifications were preferred against PO. David Arroyo, Tax# 903366. The allegation of Charges & Specifications- IAB will be closed as Information and Intelligence					
4	Full Allegation Official Statement - Misleading Statement - PG	Classification Perjury/False Statements	Allegation Index GO15-PG 206-13	Allegation Date 10/09/2018	Finding 07 - Substantiated	Finding Date 10/15/2018
	Comments This investigation disclosed Police Officer David Arroyo, while assigned to the 79th Precinct and on-duty, on or about and between March 19, 2018 and April 11, 2018, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer, during his two official Department interviews, wrongfully made inaccurate or misleading statements as to conversations he had with PO [REDACTED] and PO [REDACTED] that were recorded by the officers. In the first PG 206-13 hearing of PO Arroyo he denied having the conversations but in the second PG 206-13 after being confronted with the recordings he then admitted the conversations took place. The allegation of Official Statement - Misleading Statement - PG will be closed as SUBSTANTIATED. Specification # 1					
5	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/15/2018	Finding 07 - Substantiated	Finding Date 10/15/2018
	Comments An internal investigation commenced in which PO [REDACTED] and PO [REDACTED] recorded individual conversations between them and PO Arroyo on separate dates. During these recorded conversations, the officers confronted PO Arroyo regarding the dispute and the statements made. In his conversation with PO [REDACTED] PO Arroyo indicated the issue with PO Melendez and PO [REDACTED] is between them. He then referenced a prior conversation he had with PO [REDACTED] and PO [REDACTED] regarding everyone being "on the same plane" pursuant to summons activity. He stated Inspector John Chell approached him regarding summons activity and if anyone was telling the midnight to not write summonses. PO Arroyo stated he denied to Inspector Chell that anyone on the midnights were telling officers not to write. Inspector Chell was conferred with and confirmed this conversation as referenced by PO Arroyo took place. In the conversation with PO [REDACTED] she confronted him regarding his statement that PO Melendez told him that she "snitched" on her. PO Arroyo responded that "he "Heard that from the lawyer and that bothered me too." PO Arroyo also references a prior conversation with PO [REDACTED] that "we should stay in the same number of summonses" and stated					

that Inspector Chell approached him about saying this.

Said Police Officer David Arroyo, while assigned to the 79th Precinct and on-duty, on or about and between December 30, 2015 and May 13, 2017, engaged in conduct prejudicial to the good order, efficiency, or discipline of the Department, to wit: said Police Officer attempted to influence performance activity on the 1st Platoon by telling members to be on the □same plane□ and □same number□ regarding summons activity. The allegation of Other Dept Rules/Procedures Violation will be closed as SUBSTANTIATED. (Influence Performance Activity) Specification # 2

Name 929719 ALEXANDRO BERRIOS POM (079-079 PRECINCT)	Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race	Dob [REDACTED]
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Allegations

1	Full Allegation Charges & Specifications - IAB	Classification NOTIFICATION/Additional Information	Allegation Index CS-Charges and Specifications	Allegation Date 06/21/2018	Finding 04 - Info. and Intelligence	Finding Date 10/15/2018
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	Comments This investigation disclosed that on June 18, 2018, Charges & Specifications were preferred against PO Alexandro Berrios, Tax# 929719. The allegation of Charges & Specifications- IAB will be closed as Information and Intelligence
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2	Full Allegation Fail to Respond in a Timely Manner - to 911 Job	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/15/2018	Finding 07 - Substantiated	Finding Date 10/15/2018
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Comments
This investigation disclosed that on May 13, 2017, PO [REDACTED] and PO [REDACTED] escorted an EDP to Kings County Hospital. The dispatcher assigned a job in their Sector to PO Frederick and PO Berrios who failed to immediately respond and render police services to a job properly assigned to them. PO Frederick and PO Berrios instead travelled outside the confines of their assigned sector, command and borough without permission or authority to go to Kings County Hospital.
PO Frederick and PO Berrios have been interviewed under the provisions of PG 206-13. They both admitted to being out of sector, out of command and out of borough to ☐ check ☐ on PO [REDACTED] and PO [REDACTED] to ascertain if they are ☐ milking ☐ their job. They obtained no prior permission from a supervisor to go to the hospital. As such the allegation of Fail to Respond in a Timely Manner - to 911 Job will be closed as SUBSTANTIATED.
Specification # 2

3	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/15/2018	Finding 07 - Substantiated	Finding Date 10/15/2018
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Comments
This investigation disclosed that on May 13, 2017, PO [REDACTED] and PO [REDACTED] escorted an EDP to Kings County Hospital. The dispatcher assigned a job in their Sector to PO Frederick and PO Berrios who failed to immediately respond and render police services to a job properly assigned to them. PO Frederick and PO Berrios instead travelled outside the confines of their assigned sector, command and borough without permission or authority to go to Kings County Hospital. PO Frederick and PO Berrios have been interviewed under the provisions of PG 206-13. They both admitted to being out of sector, out of command and out of borough to ☐ check ☐ on PO [REDACTED] and PO [REDACTED] to ascertain if they are ☐ milking ☐ their job. They obtained no prior permission from a supervisor to go to the hospital. As such the allegation of Other Dept Rules/Procedures Violation will be closed as SUBSTANTIATED. (Traveled outside the confines of his assigned sector and command without permission) Specification # 1

4	Full Allegation MOS/MOS Incident (On Duty) - Verbal Dispute	Classification Miscellaneous	Allegation Index ED-Engage in Dispute	Allegation Date 10/15/2018	Finding 04 - Info. and Intelligence	Finding Date 10/15/2018
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	Comments

This investigation disclosed that on May 17, 2017 PO [REDACTED] and PO [REDACTED] reported they were being retaliated against by Police Officer David Arroyo, Police Officer Alexandro Berrios, and PO Jason Frederick, all assigned to the 79th Precinct, due to perceived testimony PO [REDACTED] gave pursuant to IAB case # C16-065. PO [REDACTED] was interviewed by IAB Group 54 on January 3, 2015 under the provisions of PG 206-13 as a witness officer in a case which involved her former partner PO Sandra Melendez, Tax # 939801. The case against PO Melendez was substantiated by IAB Group 54 for Force and Charges and Specifications were preferred. PO [REDACTED] and PO [REDACTED] reported that they didn't feel safe while working on the 1st Platoon and were not being appropriately backed up on high priority jobs. On the morning of May 13, 2017 PO [REDACTED] and PO [REDACTED] were met by PO Frederick and PO Berrios as well as PO David Arroyo, who is the 79th Precinct Union Delegate. A heated verbal altercation ensues in the vestibule between the rear parking lot and the inside of the command in which PO Arroyo is clearly sided with PO Frederick and Berrios. During this dispute, it was alleged and admittedly said by PO Frederick to PO [REDACTED] and PO [REDACTED] that "Nobody likes you, why don't you get off the tour." The reasoning provided was that they do not handle jobs in their assigned sector. PO [REDACTED] and PO [REDACTED] were called "snitches" due to informing the Patrol Supervisor that PO Frederick and PO Berrios went to KCH. During the PG 206-13 hearing PO Frederick, PO Berrios and PO Arroyo did acknowledge the dispute in the rear vestibule. As such the allegation of MOS/MOS Incident (On Duty) - Verbal Dispute is being closed as INFO AND INTELLIGENCE,

Name 930183 JASON FREDERICK POM (079-079 PRECINCT)		Status UNIFORM MEMBER OF SERVICE	Sex MALE	Race WHITE	Dob [REDACTED]	
Allegations						
1	Full Allegation Charges & Specifications - IAB	Classification NOTIFICATION/Additional Information	Allegation Index CS-Charges and Specifications	Allegation Date 06/21/2018	Finding 04 - Info. and Intelligence	Finding Date 10/15/2018
		Comments This investigation disclosed that on June 18, 2018, Charges & Specifications were preferred against PO Jason Frederick, Tax# 930183. The allegation of Charges & Specifications- IAB will be closed as Information and Intelligence				
2	Full Allegation Fail to Respond in a Timely Manner - to 911 Job	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/15/2018	Finding 07 - Substantiated	Finding Date 10/15/2018
		Comments This investigation disclosed that on May 13, 2017, PO [REDACTED] and PO [REDACTED] escorted an EDP to Kings County Hospital. The dispatcher assigned a job in their Sector to PO Frederick and PO Berrios who failed to immediately respond and render police services to a job properly assigned to them. PO Frederick and PO Berrios instead travelled outside the confines of their assigned sector, command and borough without permission or authority to go to Kings County Hospital. PO Frederick and PO Berrios have been interviewed under the provisions of PG 206-13. They both admitted to being out of sector, out of command and out of borough to "check" on PO [REDACTED] and PO [REDACTED] to ascertain if they are "milking" their job. They obtained no prior permission from a supervisor to go to the hospital. As such the allegation of Fail to Respond in a Timely Manner - to 911 Job will be closed as SUBSTANTIATED. Specification # 2				
3	Full Allegation Other Dept Rules/Procedures Violation -	Classification Abuse of Dept Regulations	Allegation Index VRP-Violation Rules/Procedures	Allegation Date 10/15/2018	Finding 07 - Substantiated	Finding Date 10/15/2018
		Comments This investigation disclosed that on May 13, 2017, PO [REDACTED] and PO [REDACTED] escorted an EDP to Kings County Hospital. The dispatcher assigned a job in their Sector to PO Frederick and PO Berrios who failed to immediately respond and render police services to a job properly assigned to them. PO Frederick and PO Berrios instead travelled outside the confines of their assigned sector, command and borough without permission or authority to go to Kings County Hospital. PO Frederick and PO Berrios have been interviewed under the provisions of PG 206-13. They both admitted to being out of sector, out of command and out of borough to "check" on PO [REDACTED] and PO [REDACTED] to ascertain if they are "milking" their job. They obtained no prior permission from a supervisor to go to the hospital. As such the allegation of Other Dept Rules/Procedures Violation will be closed as				

		SUBSTANTIATED. (Traveled outside the confines of his assigned sector and command without permission) Specification # 1			
4	Full Allegation MOS/MOS Incident (On Duty) - Verbal Dispute	Classification Miscellaneous	Allegation Index ED-Engage in Dispute	Allegation Date 10/15/2018	Finding 04 - Info. and Intelligence Finding Date 10/15/2018
		Comments This investigation disclosed that on May 17, 2017 PO [REDACTED] and PO [REDACTED] reported they were being retaliated against by Police Officer David Arroyo, Police Officer Alexandro Berrios, and PO Jason Frederick, all assigned to the 79th Precinct, due to perceived testimony PO [REDACTED] gave pursuant to IAB case # C16-065. PO Stone was interviewed by IAB Group 54 on January 3, 2015 under the provisions of PG 206-13 as a witness officer in a case which involved her former partner PO Sandra Melendez, Tax # 939801. The case against PO Melendez was substantiated by IAB Group 54 for Force and Charges and Specifications were preferred. PO [REDACTED] and PO [REDACTED] reported that they didn't feel safe while working on the 1st Platoon and were not being appropriately backed up on high priority jobs. On the morning of May 13, 2017 PO [REDACTED] and PO [REDACTED] were met by PO Frederick and PO Berrios as well as PO David Arroyo, who is the 79th Precinct Union Delegate. A heated verbal altercation ensues in the vestibule between the rear parking lot and the inside of the command in which PO Arroyo is clearly sided with PO Frederick and Berrios. During this dispute, it was alleged and admittedly said by PO Frederick to PO [REDACTED] and PO [REDACTED] that "Nobody likes you, why don't you get off the tour." The reasoning provided was that they do not handle jobs in their assigned sector. PO [REDACTED] and PO [REDACTED] were called "snitches" due to informing the Patrol Supervisor that PO Frederick and PO Berrios went to KCH. During the PG 206-13 hearing PO Frederick, PO Berrios and PO Arroyo did acknowledge the dispute in the rear vestibule. As such the allegation of MOS/MOS Incident (On Duty) - Verbal Dispute is being closed as INFO AND INTELLIGENCE			
Name 939801 SANDRA MELENDEZ POF (079-079 PRECINCT)		Status UNIFORM MEMBER OF SERVICE	Sex FEMALE	Race	Dob [REDACTED]
Allegations					
1	Full Allegation Disclose Confidential Information - Other	Classification Abuse of Dept Regulations	Allegation Index Provides General Confid. Dept Info	Allegation Date 06/19/2017	Finding 10 - Unfounded Finding Date 10/15/2018
		Comments On May 17, 2017 PO [REDACTED] and PO [REDACTED] reported they were being retaliated against by Police Officer David Arroyo, Police Officer Alexandro Berrios, and PO Jason Frederick, all assigned to the 79th Precinct, due to perceived testimony PO [REDACTED] gave pursuant to IAB case # C16-065. PO [REDACTED] was interviewed by IAB Group 54 on January 3, 2015 under the provisions of PG 206-13 as a witness officer in a case which involved her former partner PO Sandra Melendez, Tax # 939801. The case against PO Melendez was substantiated by IAB Group 54 for Force and Charges and Specifications were preferred. PO [REDACTED] and PO [REDACTED] reported that they didn't feel safe while working on the 1st Platoon and were not being appropriately backed up on high priority jobs. PO [REDACTED] alleged that PO Melendez told the midnights that PO [REDACTED] "snitched" on her in the PG 206-13 hearing for PO Melendez's case. PO Arroyo told PO [REDACTED] that PO Melendez did not say anything and that he heard that from the PBA lawyer. In a PG 206-13 hearing with PO Arroyo he admitted to making it up and told this to PO [REDACTED] to bother her. During the PG-206-13 hearing of PO Melendez she denied ever disclosing any confidential information in regards to her prior case or ever stating that she believed PO [REDACTED] gave disparaging testimony about her. As such the allegation of Disclose Confidential Information will be closed as UNFOUNDED.			
ATTACHMENT					
1	 <u>'Charges & Specs PO Arroyo & Preferring 49'</u>				
2	 <u>'Charges & Specs PO Berrios & Preferring 49'</u>				

3	 'Notice of Dispositions Complainants PO [REDACTED] and PO [REDACTED]
4	 'Notice of Dispo Subject MOS PO Berrios, PO Arroyo, PO Melendez and PO Frederick
5	 'Charges & Specs PO Frederick & Preferring 49'
6	 'Modification 49 PO Arroyo'
7	 'Request 49 Charges PO Frederick'
8	 'Request 49 Charges PO Arroyo'
9	 'Request 49 Charges PO Berrios'

Reporting Officer:	Rank LCD	Name ALFANO STEVEN	Tax Reg. No. 921911	Command G54-GROUP 54 - FORCE		
Reviewing Supervisor:	Manner of Closing C - PARTIALLY SUBSTANTIATED	Date Reviewed 01/11/2019	Date of Next Review	Name CORRADO DERRICK	Supv. Tax No. 897238	
Endorser:	Rank LCD	Name ALFANO STEVEN	Tax Reg. No. 921911	Command G54-GROUP 54 - FORCE	DateTime Reviewed 01/10/2019 17:02	Status Approved
	Comments FORWARD FOR REVIEW.					
Endorser:	Rank DI	Name PARENTE MICHAEL	Tax Reg. No. 905618	Command G54-GROUP 54 - FORCE	DateTime Reviewed 01/10/2019 17:31	Status Approved
	Comments [REDACTED]					
Endorser:	Rank INS	Name MCGRATH THOMAS	Tax Reg. No. 905607	Command Z03-ZONE 3	DateTime Reviewed 01/11/2019 12:48	Status Approved
	Comments					

	APPROVED					
Endorser:	Rank INS	Name CORRADO DERRICK	Tax Reg. No. 897238	Command Z03-ZONE 3	DateTime Reviewed 01/11/2019 13:36	Status Approved
	Comments APPROVE					